

Draft Performance Work Statement

Veteran's Affairs Palo Alto Health Care System

VAPAHCS HVAC Cooling Towers & Closed Loop Water Testing, Treatment and Maintenance Service

1.0 GENERAL INTENTION AND REQUIREMENTS

- A. The intention of this Performance Work Statement (PWS) is to obtain chemical water treatment for the heating, ventilation, and air conditioning (HVAC) cooling towers, as well as the heating and cooling loop water systems (Heating Hot Water (HHW), Processed Chilled Water (PCHW), Chilled Water (CHW)), and to obtain preventative maintenance and semi-annual cleaning for the cooling towers located at the Veterans Affairs Palo Alto Health Care System (VAPAHCS). This includes all three VA campuses: VA Menlo Park, VA Palo Alto, and VA Livermore. VA Palo Alto is located at 3801 Miranda Ave, Palo Alto, CA 94304. VA Menlo Park is located at 795 Willow Rd, Menlo Park, CA 94025. VA Livermore is located at 4951 Arroyo Rd, Livermore, CA 94550.
- B. The Contractor shall provide all management, supervision, labor, parts, materials, tools, incidental engineering services, and transportation necessary to perform weekly testing and chemical balancing services for all cooling towers, monthly testing and chemical balancing services for all heating hot water, chilled water, and processed chilled water loops, as well as monthly, quarterly, and annual preventative maintenance for cooling towers as per the provided checklist and inventory. Additionally, they shall provide unscheduled/emergency maintenance and repair service to the cooling towers and limited maintenance for the closed loop water systems. The contractor also needs to provide tools, labor, material and supervision for semi-annual cooling tower cleaning.
- C. The Contractor, without additional expense to the Government, shall obtain all licenses, permits, and insurance required to perform the work in this contract. The Contractor shall comply with all applicable federal, state, and local laws. Evidence of insurance, licenses, and permits shall be provided to the COR before work commences.

1.1 CODES and STANDARDS

- A. The publications listed below form a part of this contract. Cooling tower and closed-loop water chemical treatment and preventative maintenance and cleaning shall meet the requirements of the current code editions, all manufacturer-recommended guidelines, Veterans Affairs memorandums, and industry standards, as applicable. In the case of conflicting standards, the most stringent shall apply.
 - 1. Veterans Affairs Prevention of Health Care-Associated Legionella Disease and Scald Injury from Water Systems VHA DIRECTIVE 1061(4)
 - 2. VAPAHCS Health Care Associated Legionella Disease Management Plan SOP 138-21-05
 - 3. VA Engineering Standards Cooling Tower Water Systems ES-2019-001 SOP 138-21-31
 - 4. OSHA Safety and Health Topics page for Legionellosis: General Duty Clause (Section 5(a)(1))

1.2 DEFINITIONS/ACRONYMS

CONTRACTOR – Private entity holding and in contractual agreement with the Federal entity within this contract, representative of all Prime contracted, and subcontracted employees.

CO – Contracting Officer

COR – Contracting Officer's Representative

FAR – Federal Acquisition Regulation

MCP – Maintenance Control Program provided by Contractor

MSDS – Material Safety Data Sheet provided by Contractor

NTP – Notice to Proceed

OSHA – Occupational Safety and Health Administration

PO – Purchase Order issued by the CO/COR

PPE – Personal Protective Equipment

QAP – Quality Assurance Program provided by Contracting Officer

QCP – Quality Control program provided by Contractor

VA – United States Department of Veterans Affairs

VAMC – Veterans Affairs Medical Center

PWS – Performance Work Statement

ASHRAE – American Society of Heating, Refrigerating, and Air-Conditioning Engineers

HHW – Heating Hot Water

CHW – Chilled Water

PCHW – Processed Chilled Water

PAD – VA Palo Alto Medical Center

MPD – VA Menlo Park Medical Center

LVD – VA Livermore Medical Center

VAPAHCS - Veterans Affairs Palo Alto Health Care System Health Care System

1.3 GOVERNMENT FURNISHED PROPERTY, MATERIALS, and SERVICES

- A. VAPAHCS will not provide office space or operational facilities to the Contractor. The Contractor shall secure and maintain the necessary office space and other facilities required for the performance of this Contract at his/her own expense.
- B. VAPAHCS will not provide tools or equipment to the Contractor. The Contractor shall furnish all tools required for the performance of this Contract.
- C. VAPAHCS will not provide any materials to the contractor.
- D. VAPAHCS will furnish the following services for use in those facilities provided by the VAPAHCS and as required for the work to be performed under this Contract: electricity, fresh water, sewage service, and non-hazardous refuse collection (from existing collection points). Disposal of equipment and construction debris is the responsibility of the Contractor.

1.4 CONTRACTOR REQUIREMENTS

- A. It is preferred that the Contractor have a minimum of five (5) years within the last twelve (12) years of successful experience maintaining HVAC equipment identical or similar to the types listed in this PWS. Offerors shall submit references for five (5) years of experience including names, addresses, and telephone numbers of specific companies to the contracting officer.
- B. The Contractor shall provide a Contract Manager who shall be responsible for the performance of the contract work. The name of the Contract manager and an alternate shall be designated in writing to the CO/COR prior to the Contract start date. Changes to personnel shall be submitted to the Government within five (5) workdays of the changes. The Contract Manager or alternate shall have full authority to act on all Contract matters relating to the daily operation of the Contract. The Contract Manager or alternate shall be available to speak/meet with the CO or COR within 24 hours of request during normal operating hours, and or within the next business day after Friday or a Federal holiday.
- C. The selection, assignment, and management of the contractor's employees are the responsibility of the Contractor. The Contractor shall not employ any individual identified as a potential threat to the health, safety, security, and general wellbeing, or operation of the VAPAHCS facility or personnel. The Contractor is fully responsible for the performance and conduct of his/her employees at all times. The Contractor shall not allow any employee to perform work under this Contract while under the influence of alcohol, drugs, or any other incapacitating agent.

1.5 BACKGROUND CHECKS and IDENTIFICATION BADGES

- A. Contractor and Subcontractor personnel that work on any VAPAHCS property must consent to Background Checks or shall be denied access to the VAPAHCS facilities. Information required to conduct a Background Check includes full name, driver's license number and/or social security number, date of birth, and completion of a background check questionnaire.
- B. Contractors shall ensure their employees and those of their Subcontractors have the proper credentials allowing them to work in the United States. The Contractor shall not be entitled to any compensation for delay or expenses associated with this requirement and are not excused from proceeding with the Contract.
- C. Department of Veterans Affairs requires all Contractor employees to have a VAPAHCS issued Identification Badge and wear it at all times while at the VAPAHCS facilities. This ID badge shall be issued by the VAPAHCS security office under its rule for issuance. Contractor personnel shall present a neat appearance and be easily recognized as a Contractor employee by wearing distinctive clothing bearing the name of the company and a VAPAHCS issued ID badge. **When an employee leaves the Contractor's service or the Contract is terminated, the employee's badge shall be returned to the VAPAHCS within 3 working days.**

1.6 EMERGENCY TELEPHONE NUMBERS

The Contractor shall provide the CO/COR with pertinent emergency telephone numbers in order to summon assistance in the event of an emergency. At least one of the emergency telephone numbers, and one alternate telephone number, shall be manned twenty-four (24) hours per day, 365 days per year. This information shall be provided in writing to the CO/COR.

2.0 TESTING & MAINTENANCE SERVICES (Specific Tasks)

- A. Contractor shall not make any alteration or additions to the equipment without prior written approval from the CO/COR.
- B. Contractor shall provide tools, equipment, specialty items and other items that may be necessary to perform the tasks required under this Contract. Any parts not available from the manufacturer due to obsolescence remain the Contractor's responsibility to replace from another source.
- C. Contractor shall immediately notify the COR or COR designee of any equipment or environmental conditions which impair or jeopardize the safe and continuous functioning of the equipment.
- D. If work is required that is outside of the Scope of this Contract, the Contractor shall submit a detailed cost estimate for the required repairs to the CO/COR within 3 business days of finding the issue. The Contractor shall not proceed with such work, except for an emergency situation, without the written consent of the CO/COR and receipt of a separate Purchase Order to cover the cost of the additional work.
- E. The Contractor shall submit an annual schedule within 10 business days of award to the base year and subsequent option years identifying all the required service requirements in this contract to the COR.
- F. The Contractor shall perform all required tasks identified under the proceeding sections to each cooling towers and closed water loop systems under this contract. The VA may request to add or remove inventory as required by contract modification.
- G. The Contractor shall perform maintenance services at times that minimizes impact to patient care services. The scheduled maintenance shall be conducted Monday-Friday between 7:00 AM and 4:30 PM (excluding federal holidays). Normal patient care operations are Monday through Friday 7:00 AM to 4:30 PM. Unless it's an emergency, all federal holidays shall be observed. If these holidays fall on Saturday, the preceding Friday will be observed. If these holidays fall on Sunday, the following Monday will be observed. Recognized Holidays:
 - New Year's Day
 - Martin Luther King Jr.'s Birthday
 - President's Day
 - Memorial Day
 - Juneteenth
 - Independence Day
 - Labor Day
 - Columbus Day
 - Veteran's Day
 - Thanksgiving Day
 - Christmas Day"
- H. Cooling Tower filters shall be checked and maintained according to the manufacturer's recommendations by a certified water treatment specialist.
- I. The Contractor shall drain, clean (inside and outside), and treat all cooling tower systems with a biocide (under a submitted biocide treatment program established by a qualified water treatment specialist) on a Semiannual basis to include all basins and sumps.
- J. Chemicals used for treatment shall follow the local guidelines and requirements of the Sanitary Waste Discharge Permit restrictions and reporting.

- K. Contractor shall be responsible for compliant disposal procedures for empty or expired chemical containers and waste.
- L. Contractor shall provide onsite service for all VAPAHCS owned cooling towers as per inventory.
- M. The Contractor shall perform weekly testing of the cooling towers and provide meter readings & recordings to the Contracting Officer's Representative (COR) and the Compliance Manager via email. The Contractor shall conduct the following tests: Conductivity, Conductivity Controller, pH, PTSA, Temperature (F), Total Hardness, Alkalinity (M), Hardness (Calcium), Chlorides (as Cl), Silica, Organophosphate (ppm as PO₄), Total Chlorine, Free Chlorine, Conductivity Cycles, Biological Count (Slide) and LSI (F). The report shall also document the pH level and total dissolved solids (TDS) of the incoming cooling tower water, phosphonate and nitrite levels, bacteria readings, water and sewage usage metering, and information regarding the quantities and types of chemicals added. The Contractor shall adjust the level and refill the chemicals if the level is found to be low. The Contractor shall ensure that organophosphate and PTSA concentrations remain within the target limits. If the free chlorine levels and total chlorine levels are found to be below the target threshold, the Contractor shall apply a corrective slug feed to bring the residual levels within the acceptable operational range (ppm). The Contractor shall prime the chemical pumps and calibrate the controller if necessary. The Contractor shall ensure that all conductivity sensors are thoroughly cleaned to improve the accuracy of measurements. Also, the Contractor shall include makeup totalizer meter readings in the weekly cooling tower testing reports. Each report should contain a closing comment addressing any findings or issues that the VA engineering crew should be aware of, such as water leaks, faulty controller, faulty chemical pump, bleed & makeup water valve issues, float mechanism issue along with corresponding pictures and a makeup water comparison table to the previous week's recorded data.
- N. The Contractor shall provide monthly onsite testing and chemical balancing services for all heating hot water, chilled water, and processed chilled water loops as per the provided inventory. The Contractor shall conduct the following tests: pH, Sodium Nitrite level (Corrosion Inhibitor), and Iron (ppm as Fe). The report should also document the information regarding the quantities and types of chemicals added to the closed Loop. The Contractor shall adjust the level and refill the chemical pot feeder if the corrosion inhibitor (Sodium Nitrite) level is found to be low. The Contractor shall submit a report containing readings and recordings to the Contracting Officer's Representative (COR) and the Compliance Manager via email. Additionally, each report should contain a closing comment addressing any findings or issues that the VA engineering crew should be aware of, such as water leaks, expansion tank status, pot feeder integrity, or anything else that could compromise and affect the chemistry of the loops, along with corresponding pictures.
- O. The Contractor shall perform all water treatment testing to include but be limited to Ryznar Stability Index (RSI) and Mass Balance.
- P. The Contractor shall provide inspection and calibration of all control equipment as required by applicable standards.
- Q. The Contractor shall prime chemical pumps as necessary.
- R. The Contractor shall provide and maintain corrosion and scale inhibitors as required.
- S. The Contractor shall provide and maintain microbicides for all cooling towers as required.
- T. The Contractor shall provide and maintain loop inhibitor as required.

- U. The Contractor shall provide equipment and chemical training to VAPAHCS staff if requested.
- V. The Contractor shall provide to replenish chemicals as requested in the event of a drain down or large leak even within 72 hours of the event or on a date coordinated with the COR or their representative.
- W. The Contractor shall perform twelve (12) monthly, four (4) quarterly, and one (1) annual preventative maintenance service on all cooling towers as per the inventory provided by VA at the three VAPAHCS divisions (VA Palo ALTO, VA Menlo Park and VA Livermore). The Contractor shall execute all preventative maintenance as recommended by the manufacturer and as outlined in, but not limited to, the tasks listed in the attached checklist. The comprehensive preventative maintenance service shall encompass water-side cleaning, electrical system inspection and testing, as well as electronic control analysis and programming. The contractor must have a safety program in place that includes, but is not limited to, the following components: Electrical Safety, Hazardous Material Handling, Industrial Safety Practices, and a Confined Space Program. Additionally, only one cooling tower will be serviced at any given time and at one facility to avoid disruptions to the medical center's air conditioning system. Field Service Reports must be provided to the Contracting Officer's Representative (COR) within 72 hours of the completion of service. Each Field Service Report shall include a closing comment detailing any findings or issues that the VA engineering crew should be aware of. This may include water leaks, faulty controllers, faulty chemical pumps, issues with the bleed and makeup water valves, float mechanism problems, faulty motors, worn-out belts, bearing-related issues, fan shaft, tension assembly or wheel issues, vibration switch problems, and the current operational status of the cooling tower (whether it is working or not). Corresponding pictures should also be attached. Report should show the completion of each task on the provided checklist and any applicable inspection comments. The Contractor shall conduct Performance Assurance Checks (PAC) at the conclusion of every Preventative Maintenance Inspection (PMI) and repair service. The PAC must ensure the accuracy and precision of the equipment and must be reported using standardized Field Service Reports. The Contractor shall ensure that all parts used are current manufacturer's parts and are compatible with the equipment under contract.
- X. The contractor must ensure that all weekly, monthly, and annual reports submitted to the VA representative adhere to the following format: Facility Name, Building Number, Report Type (Monthly, Quarterly, Annual, or Repairs), Month-Year (for repair reports, include the Cooling Tower/Closed Loop Number).
- Y. The Contractor shall identify and document all existing issues in detail in their first Field Service Report. The Contractor shall determine whether each deficiency can be corrected by replacement or repair and provide the corresponding quote to the Contracting Officer's Representative (COR) if necessary.
- Z. The Contractor shall proceed with the repair or replacement only after the Contracting Officer has determined it is within the scope of work and an official contract modification for the concerned tasks has been awarded.

2.1 EXTENDED OUT OF SERVICE NOTIFICATIONS AND REPAIRS

- A. Notify the Contracting officer's representative (COR) and designated Engineering Facilities Management points of contact via call/text/email in the event an extended outage needs to occur. If repairs or maintenance require more than 24 hours, daily updates shall be communicated to the COR on the issues causing the extended outage. Notify Facilities Management and the COR when placing equipment back in service.

- B. All maintenance and/or repairs that will remove a tower or loop from service for an extended period of time (4 hours or longer) shall be scheduled in advance with the COR. A schedule for maintenance shall be submitted within 10 days of the start of the contract.
- C. Under no circumstances will any shutdown or breakdown last longer than five (5) consecutive working days, from initial notification to the Contractor, without prior approval of the COR.
- D. All unscheduled outages of the towers and/or loops shall have written (emailed) notification provided to the COR with detailed descriptions of the outage emailed the following business day.
- E. VAPAHCS shall retain the right to request a quote on specific repairs and troubleshooting services as part of this contract. Agreed and accepted quotes for repair and troubleshooting services shall be submitted in writing to the CO and COR for review and processing. Troubleshooting and repairs cannot begin without approval.

2.2 COOLING TOWER INVENTORY

- A. PAD Building 100 Cooling Tower 1 (Cell 1, 2 & 3) – American cooling Towers Inc., Model: ACX-2026K-3G, Serial No.: 212036-40-10-1, 212036-40-10-2 and 212036-40-10-3.
- B. PAD Building 100 Cooling Tower 2- BALTIMORE AIRCOIL COMPANY, Model: VF1-048-41M, Serial No.: U108660801- Belt 101
- C. PAD Building 615 Cooling Towers 1 (Cell 1, 2, 3 & 4) – Make: SPX Technologies, Model.: SPX Marley, Serial No.: NC 10120285-A2-NC 8414 YLS2SGF 2016, NC 10120285-A2-NC 8414 YLS2SGF 2016
- D. MPD Building 331 Cooling Tower – Make: EVAPCO, Model: ATWB93J11, Serial No: 15758345
- E. MPD Building 334 Cooling Towers 1 & 2 – Make: BALTIMORE AIRCOIL COMPANY, Model (M): 15227, Serial Number (SN): U040079801MAD and U040079802MAD,
- F. LVD Building 90 Cooling Tower - Baltimore Aircoil Company, M: FXV-434-16X4, SN: U03670436007
- G. LVD Building 62 Cooling Towers 1, 2, and 3 – Make: EVAPCO, M: LSTA493, SN: 21P106903, 12485057, and 12485058

2.3 HEATING & COOLING LOOP INVENTORY

- A. PAD Building 4 - Heating Hot Water Loop (HHW) 1 and Chilled Water (CHW) Loop 1. (Total Loop 2)
- B. PAD Building 5 - HHW Loop 1, HHW Loop 2, CHW Main and CHW C-Wing Loops. (Total Loop 4)
- C. PAD Building 6 - HHW Loop 1, HHW Loop 2, CHW Loop 1. (Total Loop 3)
- D. PAD Building 7 - HHW Loop 1, CHW Loop 1. (Total Loop 2)
- E. PAD Building MB - HHW Loop 1, CHW Loop 1. (Total Loop 2)
- F. PAD Building 100 - HHW Loop 1, CHW Loop 1, and PCHW Loop 1. (Total Loop 3)
- G. PAD Building 102 - HHW Loop 1, CHW Loop 1. (Total Loop 2)
- H. PAD Building 500 - HHW Loop 1. (Total Loop 1)
- I. PAD Building 520 - HHW Loop 1. (Total Loop 1)
- J. PAD Building 615 - CHW Loop 1. (Total Loop 1)
- K. PAD Building 710 - HHW Loop 1. (Total Loop 1)
- L. MPD Building 321 - HHW Loop 1. (Total Loop 1)
- M. MPD Building 331 - HHW Loop 1, CHW Loop 1. (Total Loop 2)
- N. MPD Building 334 - HHW Loop 1, CHW Loop 1, and CR Loop 1. (Total Loop 3)
- O. MPD Building 347 - HHW Loop 1. (Total Loop 1)
- P. MPD Building 348 - HHW Loop 1. (Total Loop 1)
- Q. MPD Building 349 - HHW Loop 1. (Total Loop 1)
- R. MPD Building 350 - HHW Loop 1. (Total Loop 1)
- S. MPD Building 351 - HHW Loop 1. (Total Loop 1)
- T. MPD Building 352 - HHW Loop 1. (Total Loop 1)
- U. MPD Building 360 - HHW Loop - A wing, B wing, C wing, D wing, E wing, F wing, G wing, H wing. (Total Loop- 8)
- V. LVD Building 62 - PF-1 HHW Loop 1, 616 HHW Loop 1, 17 Hot Room Loop 1, 616 CHW Loop 1, 327 CHW Loop. (Total Loop 5)
- W. LVD Building 64 - HHW Loop 1. (Total 1)
- X. LVD Building 88 - HHW Loop 1, CHW Loop 1. (Total Loop 2)
- Y. LVD Building 90 - HHW Reheat Loop 1, Floorboard Loop 1, CHW Condenser Loop 1, Chiller Loop 1. (Total Loop 4)

Annual, Monthly, Quarterly Cooling Towers Preventative Maintenance Checklist

Maintenance Schedule.		Completed	Comments
A. Annual Maintenance			
To be performed at the beginning of the contract, after completing any repairs identified as existing deficiencies. Coordinate with COR.			
1	General inspection of the cooling tower. Perform Lock Out Tag Out (LOTO) on tower equipment and associated tower pumps — to perform tower cleaning and sanitation in accordance with manufacturer specifications, ASHRAE Standards, and industry standards. Contractor will submit the method of procedure (MOP) for the purpose of performing annual Tower Cleaning 6 weeks prior to the start of this task.		
2	Check air inlet louvers.		
3	Check hot water pans and nozzles.		
4	Check spray nozzles, remove debris if nozzles are blocked or replace broken nozzles. Cost of material by customer.		
5	Check the operation of float valve, make-up valve for proper operations, conditions and replace, if necessary.		
6	Check vortex covers and screens.		
7	Check belts on mechanical drive (if applicable).		
8	Check tension and adjust belts on mechanical drive (if applicable), replace worn out belt. Cost of material by customer.		
9	Lubricate fan shaft bearings. Replace bearing if required. Check condition of shaft and replace if necessary.		
10	Lubricate motor base adjustment rod (if applicable). Lubricate motor bearing if motor has fitting for greasing. Use proper lubricant.		
11	Check fan rotation (verify no obstructions are present).		
12	Drive shaft - Visually inspect for cracks.		
13	Drive shaft couplings - Visually inspect bushings for wear or cracking. Tighten hardware if necessary.		
14	Gear reducer & driveshaft or coupling - Check alignment of system.		
15	Gear reducer - Check oil levels and if needed Drain & replace gearbox oil		
16	Check and lubricate gear drive		
17	Gear reducer - Perform visual inspection for oil leaks or unusual noises or vibrations.		
18	Check fan motor for proper rotation.		
19	Check motor disconnect switches and breakers.		
20	Check fill media and drift eliminators.		
21	Vibration Switch - Inspect unit for moisture or loose wiring.		
22	Oil pump - Check for leaks.		
23	Check fan screens for debris.		
24	Check distribution system for debris.		
25	Clean cold water basin strainers.		
26	Power wash basin and fill media to remove excess algae or scale.		
27	Vibration Switch - Inspect unit for moisture or loose wiring.		
28	Inspect cooling tower coating (if applicable).		
29	Check and recoat steel shafts with RUST VETO® or any industry standard rust inhibiting paint.		

B.	Monthly Maintenance			
1	General inspection of the cooling tower.			
2	Check air inlet louvers.			
3	Check the operation of float valve.			
4	Check operation of make-up valve			
5	Check and adjust bleed rate			
6	Check water level in basin and adjust float valve if necessary.			
7	Check belts on mechanical drive.			
8	Clean cold water basin strainers.			
9	Lubricate fan shaft and bearings if applicable.			
10	Check spray nozzles, remove debris if nozzles are blocked			
11	Gear reducer - Check oil leaks and oil levels			
12	12. Check distribution system for debris and remove debris			
C.	Quarterly Maintenance			
1	Check hot water pans- flush and clean.			
2	Check water level in both hot water pans and cold-water basin.			
3	Check tension and adjust belts on mechanical drive (if applicable).			
4	Lubricate fan shaft and bearings.			
5	Check fan blades or blower wheels for excessive vibration, missing weights, or cracks.			
6	Clean fan and check for scale build up on blades.			
7	Make-up valve - Check and clean solenoid valve on make-up water connection.			
8	Inspect VFD for proper speed			
9	Check gear box for leaks and add oil if low (Use only the proper oil designed specifically for the gear drive)			
10	Check no bolts or mounting hardware of fan is missing and all bolts are tightened and secure.			
11	Check and unplug fan drain holes (hollow blade fans)			
12	Clean all debris, such as leaves and dirt, from the interior and exterior of the unit.			
13	Clean fan/ control panel/ storage space with nitrogen vacuum cleaner.			
14	Sliding motor base - Inspect and grease			
15	Lubricate motor base adjusting screw			

3.0 WRITTEN MAINTENANCE RECORDS

- A. The Contractor shall maintain both hard and electronic copies of all maintenance and testing records. Hard copies shall be kept on site on a wall mounted binder inside the cooling tower yard/room. Electronic copies shall be emailed to the COR and designated parties within 72 hours of completion of scheduled activities. Deficiencies or issues requiring elevation shall be submitted as soon as discovered by phone/text/email to the COR and/or designated parties. All activities and visits shall be recorded in both hard and electronic format.
- B. Logs of record shall be delivered and retained by the Engineering Maintenance Control Manager (Compliance), identified after award.
- C. Sample logs of previous maintenance records shall be provided for reference purposes.
- D. The Contractor shall submit in all reports and as part of reported findings, recommendations for correction and troubleshooting

4.0 UNSCHEDULED MAINTENANCE AND REPAIR SERVICES

- A. UNSCHEDULED MAINTENANCE AND REPAIR SERVICES in CLIN are defined as any work requested and authorized by the Government that is within the scope of this contract but in addition to the contract requirements. Any work of this nature detected by the contractor shall be immediately reported to the COR, but work shall not be performed until the contractor and the COR or CO as appropriate have reached an agreement on the price to accomplish the project and an approval from COR is received. Work shall be performed immediately, if necessary (i.e., an emergency) although typically a 48-hour notice will be given.
- B. Upon receipt of an Unscheduled Maintenance and Repairs request, the Contractor shall assess the requirement and prepare a quote for both the parts and labor listed separately with a statement of work and provide to the COR within 15 calendar days of the government request.
- C. Payment will not be made for any unauthorized unscheduled maintenance work that was not pre-approved by the CO or COR.
- D. The parts needed for the repairs will be purchased using Government Purchase Card (GPC) or a separate contract. The labor charges will be covered by labor hour Contract Line Item (CLIN) listed on this contract. COR approval is required before the work begins.
- E. In the event of full expenditure of Unscheduled Maintenance and Repair Service CLIN funding within a performance year, further funding may be added to the contract based upon CO/COR discretion via an official contract modification. Any unused funds will be de-obligated and returned to the Government at the end of the performance period.
- F. Materials and Parts – The Government reserves the right to furnish any or all parts and/or materials required for a particular repair/replacement.
- G. The Government reserves the right to perform the work using whatever resources are available.
- H. The Contractor shall provide or install only OEM parts.
- I. The Contractor shall inform the COR of any breakdowns, failures, or malfunctioning of equipment immediately and send an email within 48 with service report and proposal for repairs.
- J. If a dispute between codes, standards, or manufacture recommendation arises the most stringent shall be enforced.

5.0 INJURY and ACCIDENT REPORTS

- A. Contractor shall immediately report to the CO/COR in a manner and on the forms prescribed by the VAPAHCS all accidents resulting in injury, trauma, death, hazardous exposures, and occupational disease involving HVAC Cooling Tower Systems and Closed Loop (HHW, PCHW, CHW)
- B. Written reports for all incidents shall be provided within five (5) working days and include the cause, what, where, and when the incident occurred as well as repairs and tests performed to correct the cause of the incident.

6.0 SAFETY

- A. The Contractor shall adhere to all OSHA, EPA, NFPA Life Safety Codes, and all other regulatory requirements. Safety shall be the Contractor's highest priority. OSHA Recordable Rate shall be no more than 1.0. The Contractor shall be solely responsible for compliance with (Federal) OSHA regulations. The Contractor shall provide a detailed explanation as to how the service will be implemented and managed to ensure compliance with all applicable OSHA Standards, Life Safety issues, and security measures. Contractor shall have a Site Safety and Health Officer (SSHO) assigned to ensure their technicians are meeting OSHA requirements. The SSHO shall be well versed in OSHA requirements and regulations. The SSHO will perform regular safety inspections on the job site to ensure technician compliance and quality of work are at a high level that presents no risks to staff or patrons. Safety inspections will include fall protection and electrical hazards and end with job safety meetings with the entire crew. The Contractor shall provide the CO/COR copies of the safety inspection reports upon request at no additional cost to the Government.
- B. In performance of this Contract, the Contractor shall follow VAPAHCS safety policy and standards for safe work practices and take such safety precautions as the VAPAHCS Safety Officer or designee or the CO/COR may determine to be reasonably necessary to protect the lives and health of occupants of the building. The Contractor shall comply with VAPAHCS smoking policy.
- C. Patient, employee, visitor, and Contractor personnel safety shall be maintained at all times. The Contractor is responsible for the safety and health of his/her employees. The Contractor shall comply with all applicable OSHA safety and health standards. The Contractor shall replace all safety guards, equipment, devices, etc. removed to service or repair the cooling towers and closed loops immediately after completion of work or when leaving the job unattended.
- D. The Contractor shall submit to the Contracting Officer's Representative (COR), prior to the start of the Contract, the Safety Data Sheets (SDS) for all potentially hazardous materials (lubricants, chemicals, cleaners, fluids, etc.) to be used in the facility in performance of the Contract, and will not use, in the facility, such materials which have not been so cleared in advance with the VAPAHCS. SDS for new chemicals shall be furnished prior to the arrival of the chemical on site. The Contractor shall maintain a copy of all SDS in each work area to assure compliance with all laws and requirements regarding the "Right to Know" law.
- E. Contractor is responsible to identify, provide and maintain all personal protective equipment (PPE) required to perform the duties outlined in the Contract. In addition, the Contractor is responsible for identifying and providing all applicable safety programs required to perform the work i.e., lockout/tag out, confined space entry, universal precautions, etc. Training required for safety programs and the proper use of PPE shall be provided by employer, and documentation maintained by the Contractor.

- F. The Contractor shall obtain a Hot Work Permit from the VAPAHCS Safety staff or the COR in advance whenever soldering, welding, grinding, and using a cutting torch, or other open flame, spark or heat producing equipment is used. The Contractor is required to follow all requirements outlined for the issuance of the Hot Work Permit.
- G. Contractor shall be notified of any non-compliance with safety regulations. The Contractor shall, after receipt of such notice, immediately correct the condition and notify the Contracting Officer's Representative in writing that the condition has been corrected. If, in the opinion of the COR or the VAPAHCS Safety Officer the condition is life threatening he/she shall instruct the Contractor to stop work until the condition has been corrected. If the Contractor fails or refuses to comply promptly, the Contracting Officer may issue an order halting all or any part of the work, and Contractor may be held in default. The Contractor bears all costs of stop-work time and correcting safety hazards.
- H. The Contractor shall reinstall guards or equipment panels, removed to perform maintenance, on the equipment before putting it back into service.

7.0 QUALITY CONTROL PROGRAM

- A. Contractor shall establish a complete Quality Control Program to assure the requirements of the Contract are provided as specified. The Contractor shall submit this program to the COR, for acceptance within ten (10) days of Notice to Proceed.

8.0 PAYMENT FOR VERIFIABLE WORK COVERED UNDER THE CONTRACT

- A. Payment for all of the work covered under this Contract shall be billed on a monthly basis. Payment will include compensation for all labor, materials, parts, tools, equipment, transportation, supervision, administration, insurance, third-party testers, certifications, licenses, travel and all costs incurred directly or indirectly by the Contractor in an effort to complete the work of this Contract.
- B. Payment will be made in arrears of the specified billing period after receipt of a properly prepared invoice, provided all required work, including preventive maintenance, submission of reports and all other requirements for the period in question have been performed in accordance with contract stipulations, and can be verified with service reports signed by the COR or COR designee.
- C. The Contractors failure to schedule and perform a PM within the specified time interval shall be considered non-compliance with terms of contract, and VA will deduct proportionately from payments for services missed. Criticality of this equipment requires that continued such failure will necessitate holding Contractor in default and the VA obtaining suitable service via separate means.

9.0 PAYMENT FOR WORK NOT COVERED UNDER THE CONTRACT

Unless otherwise directed by the CO or unless acting in a good faith effort to perform emergency work (i.e., life, safety, entrapment, etc.), the Contractor shall not perform any work outside of the Scope of this Contract without authorization from the CO/COR and the issuance of a separate Purchase Order. Failure to receive prior approval for out-of-scope work will most likely result in the denial of compensation.

-END OF PWS-